

BEFORE THE PROCUREMENT REVIEW COMMITTEE
BALUCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY (BPPRA),
QUETTA

PRC APPEAL NO. 40/ 2025

M/s Hazrat Ali Kakar & Company,

...Appellant

Versus

1. Government of Balochistan,
Through Secretary, Communication, Works, Physical Planning & Housing Department,
Quetta.
2. Deputy Commissioner/ Chairman Grievance Redressal Committee. Pishin
3. Executive Engineer (Roads), CWPP&H, Pishin .
4. M/s Sherjan Kakar Construction Co.

... Respondents

Quorum

1. Habib ur Rehman Jamot.....MD BPPRA / Chairman
2. Mubashir Ali Khan (FCIPS).....Procurement Specialist (Goods & Services) BPPRA / Member
3. Junaid Shah.....Procurement Specialist (Works) BPPRA /Member
4. Ayub Nasir..... Retd. Chief Engineer /Technical Member
5. Abdul Hayee Baloch.....Advocate /Private Member

DECISION

Date of Decision: 21st November 2025

1. Background

This Appeal was filed by **M/s Hazrat Ali Kakar & Company Vs Secretary Physical Planning & Housing CWPP&H Department** under **Rule 56-A** of the **Balochistan Public Procurement Rules, 2014** against the **Evaluation Report by XEN C&W Pishin** dated **19-10-2025**, pertaining to **TSE No. 252609862323**, concerning the project titled:

"CONSTRUCTION OF BT ROAD IN KILLI LAMARAN MUHAMMAD DIN COLONY MC PISHIN," With an estimated cost of **Rs. 9,900,000/-**.

Brief facts of the Appeal are that the Appellant is a contractor by profession with the name & style of Hazrat Ali Kakar Construction Company and duly registered with the Pakistan Engineer Counsel. The Appellant filed the Appeal with the averment that Respondent No.3 has issued notice inviting tender Vide PRQ No. 1349/18-09-2025 wherein tenders against different schemes were invited and the Appellant participated in the above TSE No.

The Appellant claims that when Respondent No.3 uploaded the Evaluation Report on the Authority's website it was surprising for him to know that the Appellant was disqualified on account of non-submission of documentary record of similar Assignments.

The notices were issued to the Respondents with the direction to submit their reply along with the brochures of required and submitted bidding documents by the the Appellant and the successful bidders.

Observations of the Committee

The record reveals that neither the Appellant nor the Private Respondent (the successful bidder) had fulfilled the requirement of similar assignment of work in past three years, but Respondent No.3 illegally and unlawfully awarded the work to the Private Respondent mala fide and also issued work order to Respondent No. 4.

Findings

The Committee is of the considered view that:

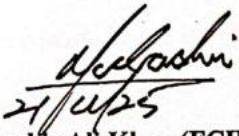
- The procurement process, as conducted by the Respondents, **was not fully in conformity with the mandatory provisions of the BPP Rules, 2014**, and requires administrative scrutiny by the Department.

Order

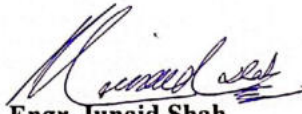
In light of the foregoing, the following order is passed:

1. The Appeal filed by **M/s Hazrat Ali Kakar & Company** is partially **accepted**, to the extent that the Work was illegally awarded, hence the procurement proceedings against TSE.252609862323 are declared null and void and as "Mis-Procurement" under Rule 57 of BPP Rules 2014.

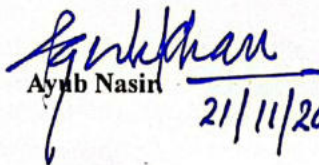

Habib Ur Rehman Jamot
Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA)
21/11/2025


Mubashir Ali Khan (FCIPS)

Member
Procurement Review Committee
BPPRA


Engr. Junaid Shah

Member
Procurement Review Committee
BPPRA


Ayub Nasir
21/11/2025

Member
Procurement Review Committee
BPPRA


Abdul Hayee Baloch

Member
Procurement Review Committee
BPPRA